new Subpart 114–26.7 is added to Chapter 114, Title 41 of the Code of Federal Regulations, as set forth below.

This subpart shall become effective on the date of its publication in the FEDERAL REGISTER (4–10–71).

RICHARD R. HITE,
*Deputy Assistant Secretary, of the Interior.*

APRIL 5, 1971.

Sec.
114–26.700 Scope of subpart.
114–26.701 Applicability.
114–26.702 Policy on use of GSA supply sources.
114–26.704 Agency authorizations.
114–26.707 Acquisition of GSA stock.

AUTHORITY: The provisions of this Subpart 114–26.7 issued under 5 U.S.C. 301 (Supp. V, 1965–1969); sec. 205(c), 63 Stat. 390; 40 U.S.C. 486(c).

## Subpart 114–26.7—Use of GSA Supply Sources by Grantees and Contractors

### § 114–26.700 Scope of subpart.

This subpart prescribes the Department's policy regarding the use of GSA supply sources by grantees and cost-reimbursement type contractors.

### § 114–26.701 Applicability.

The provisions of this subpart are applicable to all bureaus and offices of the Department.

### § 114–26.702 Policy on use of GSA supply sources.

(a) It is the policy of the Department that grantees shall be authorized to use GSA supply sources when it is in the best interest of the Government and not prohibited by law.

(b) It is the policy of the Department that, pursuant to the provisions of Federal Procurement Regulation Subpart 1–5.9, cost-reimbursement type contractors shall be authorized to use GSA supply sources when such use is in the best interest of the Government and is not prohibited by law.

### § 114–26.704 Agency authorizations.

(a) (1) In addition to other limitations and conditions, each authorization shall specify that the issuing office will not be liable for any obligations incurred by the grantee or contractor through the use of the authorization to use GSA supply sources.

(2) Authorizations shall also be limited to purchases within approved budgetary limitations, with a requirement for the prompt payment of bills upon receipt of billing.

(3) Each issuing office shall be responsible for monitoring the purchases made under each authorization, and for requiring the maintenance of purchase records needed for audit purposes.

(b) (1) Public Law 85–934 (72 Stat. 1793; 42 U.S.C. 1892) authorizes the vesting of title to equipment purchased with Federal funds pursuant to grants or contracts for the conduct of basic or applied scientific research at nonprofit institutions of higher education, or at nonprofit organizations whose primary purpose is the conduct of scientific research (205 DM 9).

(2) This authority to vest title to scientific research equipment shall be used to reduce the Government's cost and administrative burden of accounting, shipment, storage, disposition, and otherwise treating the equipment as Government property.

(3) Office of Management and Budget Circular No. A–101, dated January 9, 1971, recognizes the need for reducing such costs and burden while furthering the overall Government objective of strengthening the scientific capability of educational institutions. The policy set forth in OMB Circular No. A–101 shall be used to determine when title to equipment should be vested in such institutions. This policy applies to educational institutions only. Part 114–51 of this chapter establishes the Departmental policy for the management of equipment and supplies acquired under project grants.

### § 114–26.707 Acquisition of GSA stock.

(a) Grantees and contractors should obtain FEDSTRIP system orientation from the GSA Regional Supply Service Officer.

(b) Requisitions submitted to GSA under this system shall include a statement of authorization substantially as follows:

This order is placed pursuant to written authorization No. ------ dated ---------- issued by ---------- for (*contract number or grant*).

[FR Doc.71–5021 Filed 4–9–71;8:47 am]

# Title 43—PUBLIC LANDS: INTERIOR

## Chapter II—Bureau of Land Management, Department of the Interior

APPENDIX—PUBLIC LAND ORDERS

[Public Land Order 5037]

[Wyoming 27622]

### WYOMING

### Modification of Powersite Reserve No. 348 To Permit Grant of Right-of-Way

By virtue of the authority contained in section 24 of the Act of June 10, 1920, 41 Stat. 1075, as amended, 16 U.S.C. sec. 818 (1964), and pursuant to the determination of the Federal Power Commission in DA–165-Wyoming, it is ordered as follows:

The Executive Order of March 27, 1913, creating Powersite Reserve No. 348, is hereby modified to the extent necessary to permit the location of a right-of-way under section 2477, U.S. Revised Statutes, 43 U.S.C. sec. 932, by Park County, over the following described lands, as delineated on a map on file with the Bureau of Land Management in Wyoming 17877, for a maintenance of a public road, subject to the provisions of section 24 of the Federal Power Act, supra:

SIXTH PRINCIPAL MERIDIAN

T. 52 N., R. 104 W.,
Sec. 15, lots 28;
Sec. 16, lots 18, 22;
Sec. 19, lots 19, 22, 24.

The areas described aggregate 97.22 acres in Park County.

HARRISON LOESCH,
*Assistant Secretary of the Interior.*

APRIL 6, 1971.

[FR Doc.71–5018 Filed 4–9–71;8:47 am]

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[Public Land Order 5038]

[Sacramento 3531]

### CALIFORNIA

### Withdrawal and Reservation of Lands in Connection with the Honey Lake Waterfowl Management Area

By virtue of the authority vested in the President and pursuant to Executive Order No. 10355 of May 26, 1952 (17 F.R. 4831), it is ordered as follows:

1. Subject to valid existing rights, the following described public lands, which are under the jurisdiction of the Secretary of the Interior, are hereby withdrawn from all forms of appropriation under the public land laws, including the mining laws (30 U.S.C., Ch. 2), but not from leasing under the mineral leasing laws, and reserved for management in cooperation with the State of California Department of Fish and Game in connection with the Honey Lake Waterfowl Management Area:

MOUNT DIABLO MERIDIAN

T. 28 N., R. 14 E.,
Sec. 9, NE¼SE¼, S½SE¼.
T. 28 N., R. 15 E.,
Sec. 7, lots 3, 4, 5, 6.

The areas described aggregate 191.46 acres in Lassen County.

2. Upon execution of a cooperative agreement with the Secretary of the Interior, or his delegate, the State of California is authorized to manage the withdrawn lands for the conservation of small game and waterfowl, and as a public hunting ground, consistent with Federal programs for the management of the lands.

3. The withdrawal made by this order does not alter the applicability of the public land laws governing the use of the lands under lease, license, or permit, or governing the disposal of their mineral or vegetative resources other than under the mining laws. However, leases, licenses, contracts, or permits will be issued only if the proposed use of the lands will not interfere with proper management of the Honey Lake Waterfowl Management Area.

HARRISON LOESCH,
*Assistant Secretary of the Interior.*

APRIL 6, 1971.

[FR Doc.71–5019 Filed 4–9–71;8:47 am]